

****Hearing of the President of the Data Protection Authority, Prof. Pasquale Stanzione - Inquiry on the topic of defamation also in relation to new technological communication tools****

Senate of the Republic - 2nd Justice Commission

(18 July 2023)

- ****THE VIDEO OF THE HEARING****

I thank the Commission for addressing such a significant issue as the regulation of defamation, even from the seemingly distant perspective of personal data protection. The multiple forms of protection granted by data protection regulations represent, in fact, an increasingly important resource in light of the progressively greater dissemination, online, of defamatory content, fake news, or outright hate speech.

Although it is not the role of the Authority, but rather the judiciary, to ascertain the defamatory nature of disseminated content, the protection that the Authority can provide may well pertain to data processed in violation of the principle of accuracy and therefore, potentially, also defamatory. The protection, which is essentially remedial in nature (and thus specific), provided by data protection regulations complements that of a compensatory type that can be granted in civil proceedings, or the criminal sanction resulting from judicial ascertainment in the relevant venue.

As jurisprudence has recognized, while the Authority cannot assess the defamatory nature of the contested content, which is the competence of the judiciary, it can certainly evaluate the legality of the processing carried out with the dissemination of the data in question, expressly admitting the possibility that there may be “both a violation of the right to correct processing of personal data and a violation of the right to honor, reputation, and image.” In such cases, the Authority examines the issue concerning honor only as a “consequence of the violation of personal identity (resulting from unlawful processing of personal data)” (Trib. Milan, ruling no. 7846 of 5 September 2018).

The unlawful processing of personal data – particularly, but not exclusively, because it is carried out in violation of the principle of accuracy – indeed legitimizes the data subject to exercise their right to rectification and erasure, protecting both the identity and dignity of the individual, as well as the correctness and truthfulness of the information (Articles 16 and 17 of EU Regulation 2016/679).

A particular aspect of this protection concerns the exercise of the right to erasure in the form (better known as the “right to be forgotten”) of de-indexing content that is, for various reasons, inaccurate or outdated, with a request directed to the search engine and, in case of inaction or rejection, to the Authority or the ordinary judiciary. As already recognized by the Court of Justice in the Costeja-Google Spain case of 13 May 2014, in fact, the indexing activity carried out by the search engine constitutes an additional processing of personal data, characterized by a particularly significant “profiling” capability.

With respect to defamatory content, the amplification of its visibility and its easier accessibility guaranteed by the indexing activity of search engines indeed aggravates the prejudice that may arise to the data subject from the dissemination of such information. For this reason, the de-indexing of such content represents a complementary, yet essential, protection for the dignity, honor, and reputation of the person, in a context where, increasingly, we are what “Google says we are,” to quote a clear observation by Stefano Rodotà.

And if the right to be forgotten, in the form of delisting, has traditionally established itself as a typical protective tool concerning truthful and legitimately disseminated content that has been overtaken by the evolution of facts and is no longer current, it now encounters relevant applications also concerning unlawfully disseminated content, such as defamatory content. In the aforementioned ruling, in particular, the Tribunal of Milan refers, in a particularly significant manner, the de-indexing – as an expression of the “right to dissociate one’s name from a given search result” – to the protection of personal identity. The ruling observes, in fact, that “the so-called resizing of one’s telematic visibility represents a ‘functional’ aspect of the right to personal identity, distinct from the right to be forgotten, which involves and requires an assessment of opposing interests: that of the individual not to be (more) found online and that of the search engine.”

The Tribunal thus seems to admit de-indexing also to protect the accuracy of the processed data (in function of guaranteeing the right to personal identity), in cases where the passage of time (a constitutive element of oblivion) is not relevant, as affirmed by the Authority. This solution is supported, moreover, by the combined provisions of Articles 5, paragraph 1, letters a and d) and 17, paragraph 1, letter d) of EU Regulation 2016/679, as well as by the Guidelines no. 5 of 2019 from the European Data Protection Board, which list the defamatory nature (judicially ascertained) of the content as a criterion to be considered for the acceptance of de-indexing requests.

Recently, the Court of Cassation further developed this interpretative line by affirming, with order no. 18430 of 8 June 2022, the responsibility of the search engine for failure to act.

Acceptance of the request for de-indexing of content determined to be false by the judicial authority. The Court notes, in fact, that the provider of a hosting service such as a search engine is liable for the content of the disseminated information, pursuant to Article 16 of Legislative Decree 70 of 2003, when: a) it "is actually aware of the fact that the activity or the information is unlawful" and with regard to compensation actions "is aware of facts or circumstances that make the unlawfulness of the activity or the information evident"; or b) it does not "act immediately to remove the information or to disable access" as soon as "aware of such facts, upon communication from the competent authorities." The Court of Justice - with the judgment of December 8, 2022, C-460/20, TU, RE v. Google - in line with the accountability of platforms promoted by the Digital Services Act - has, moreover, facilitated the conditions for the acceptance of requests for de-indexing of false content. Such requests have, in fact, been recognized as valid even in cases of manifest inaccuracy, not necessarily sanctioned in a judicial setting. It is certainly not expected that the search engine be the arbiter of the truth of indexed content, but it is required to conduct a careful scrutiny of any manifest inaccuracy, as reported by the interested party.

The progressive recognition, at least in the judicial context, of delisting as a tool for the protection not only of identity but also of dignity, honor, and reputation of the individual is well justified by the amplification of the harm resulting from the indiscriminate availability of defamatory content, made possible by the actions of search engines. As noted by the Constitutional Court, with ruling no. 132 of 2020 (of unconstitutionality, deferred and then declared with judgment 150/21, of Article 13 of Law 47/48), in the preparation of "comprehensive sanctioning strategies capable, on the one hand, of avoiding any undue intimidation of journalistic activity; and, on the other hand, of ensuring adequate protection of individual reputation against unlawful - and sometimes malicious - attacks carried out in the exercise of such activity," the "rapid and lasting amplification effects of defamatory allegations determined by social networks and internet search engines, whose harmful nature for the victim - in terms of psychological suffering and concrete harm to their private, family, social, professional, and political life - and for all persons emotionally connected to them is greatly enhanced compared to what occurred even in the recent past" must also be considered.

Within the framework of the "overall reform of the existing regulation" urged by the Constitutional Court, again with judgment 150 of 2021, this type of remedial protection could then be further enhanced, extending it to a broader range of violations of the dignity of the subject, through content disseminated online in a manifestly unlawful manner. As demonstrated by the cases of oblivion and cyberbullying, the notice and take down mechanism, based on the request to the operator for the removal or de-indexing of unlawfully processed data and the subsequent request to the Guarantor in case of inertia or rejection, is indeed a useful tool for the protection of personality rights online. It particularly combines the need for the prompt removal of content (especially in cases of voluntary compliance by the provider) with the reservation to the public authority of the decision in the last instance, in the adversarial context of the parties, on the balancing of the legal interests involved.

This solution responds to the needs highlighted by the Court of Justice and the European Court of Human Rights, the latter in particular with some judgments that have established, even for States, a positive obligation to ensure measures suitable for protecting personal dignity (see, in particular, *Delfi v. Estonia* of 2015).

One could therefore reflect on the extension of this regulation to cases such as hate speech (as provided for by the Moretti bill AC 2047 of the XVII legislature and the Boldrini bill, AC 2936, of the XVIII, now AC 259) or the dissemination of manifestly inaccurate news harmful to individual identity (similarly to what was provided for by the Zanda bill, AS 3001, of the XVII legislature, for unlawful content). In this way, it would allow the Guarantor to provide effective protection to the victims of these unlawful acts, also acting directly on the platforms (which strictly speaking cannot be classified as data controllers for the processing carried out by users on their profiles), enhancing the trend towards their accountability promoted, as mentioned, by the Digital Services Act.

The measures granted by the Guarantor regarding manifestly unlawful content (because obviously inaccurate or harmful, such as hate speech) could well constitute part of an integrated strategy for the protection of personal dignity, articulated on different levels of protection, proportional to the degree of harm suffered.

This could also be reflected upon in the context of adapting to the Digital Services Act, also coordinating the competencies of the Guarantor and Agcom regarding the removal of unlawful content according to that perspective of loyal collaboration that practice has already promoted, with significant results.